

Short title,
interpretation and
commencement.

3.—(1) This Act may be cited as the Service of Process (Justices) Act, 1933.

(2) In this Act, unless the context otherwise requires—

the expression “defendant” in relation to any summons means the person to whom the summons is directed;

the expression “return day” in relation to any summons means the day on which the defendant is required by the summons to appear;

the expression “prescribed” means prescribed by rules made under section twenty-nine of the Summary Jurisdiction Act, 1879.

42 & 43
Vict. c. 49.

(3) This Act shall come into operation on the first day of January nineteen hundred and thirty-four.

CHAPTER 43.

An Act to make provision for certain deductions from remuneration to be disregarded in the computation of contributions, pensions and gratuities under enactments relating to the superannuation of persons employed, or paid, by local authorities and other public bodies; to give retrospective effect to such provision; and for purposes connected with the matters aforesaid. [28th July 1933.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Certain
reductions
in remuneration to be
disregarded
for purposes
of superannuation.

1.—(1) Subject to the provisions of this Act, when, in computing for purposes relating to superannuation under any enactment to which this section applies, the amount of—

- (i) any contribution to be made by any person;
- (ii) any contribution to be paid or credited to any fund in respect of any person;

- (iii) any transfer value, or sum in lieu of a transfer value, to be paid or credited by or in respect of any person; or
- (iv) any superannuation allowance to be paid to, or in respect of, any person.

account has to be taken of that person's remuneration in respect of any period within the five years commencing on the first day of September, nineteen hundred and thirty-one, then, if his remuneration has been affected by any such reduction as is directed by the next succeeding subsection to be disregarded, his remuneration in respect of the period in question shall be taken to be the remuneration which would have been payable to him if that reduction had not been made.

(2) Subject as hereinafter provided, a reduction in remuneration shall, for the purposes of any such computation as is mentioned in the preceding subsection, be disregarded if it—

- (i) was made, whether with or without the consent of the person whose remuneration was reduced, on account of national economic conditions; and
- (ii) first took effect between the first day of September, nineteen hundred and thirty-one, and the first day of July, nineteen hundred and thirty-two; and
- (iii) was made upon the understanding that it should not affect the amount of any superannuation allowance to become payable in the future :

Provided that a person appointed to a post after the making of any such reduction as aforesaid in the remuneration attached to the post shall, as regards his remuneration in that post, be excluded from the operation of the preceding subsection if he was appointed to the post upon the understanding that the reduced remuneration should be taken to be his remuneration for superannuation purposes.

(3) This section applies to any enactment by or under which provision is made for the granting of superannuation allowances out of a rate fund or other fund of a local authority, or a superannuation fund established or

administered by a local authority, to any such persons as are hereinafter mentioned, that is to say,—

- (i) officers or servants of any local authority;
- (ii) officers or servants of undertakers admitted to participate with officers or servants of a local authority in the benefits of a superannuation scheme or fund;
- (iii) public officers not being officers of a local authority.

Retrospec-
tive effect
of Act and
conse-
quential
adjust-
ments.

2.—(1) The provisions of the preceding section shall be deemed to have come into operation on the first day of September, nineteen hundred and thirty-one, and where before the passing of this Act any such computation as is mentioned in subsection (1) of that section has been made otherwise than in accordance with the provisions of that section, a fresh computation shall be made in accordance with those provisions as soon as practicable after the passing of this Act.

(2) After the making of such fresh computation as aforesaid—

- (i) every person who has made any contribution which is shown to have been an insufficient contribution, shall pay to the authority, or the treasurer of the fund, to which that contribution was paid the difference between that contribution and the contribution which ought to have been made;
- (ii) every employer who has paid or credited to any fund a contribution which is shown to have been an insufficient contribution, shall pay or credit to that fund the difference between that contribution and the contribution which ought to have been paid or credited;
- (iii) every authority, employer and person by whom an amount, which is shown to have been an insufficient amount, has been credited or paid to any authority or fund as a transfer value, or, in lieu of a transfer value, shall credit or pay to that authority or fund the difference between that amount and the amount which ought to have been credited or paid; and

- (iv) every authority which has made any payment in respect of a superannuation allowance which is shown to have been an insufficient payment, shall pay to the person entitled the difference between that payment and the payment which ought to have been made;

and such consequential adjustments in accounts shall be made as may be necessary.

(3) Any sum which but for the death of a person would have been payable by him under paragraph (i) of the last preceding subsection shall be set off against any increased payment due in respect of him under paragraph (iv) of that subsection, but save as aforesaid, no such sum shall be recoverable from the estate of a deceased contributor.

(4) Any payment to be made under this section by a contributor shall be made at such time or times and in such manner as may be agreed upon between him and the authority or person entitled to the payment or, in default of agreement, may be determined by the Minister.

(5) If by reason of the death of any person, or the infancy of any person, a doubt arises as to the person by whom a valid discharge can be given for any payment to be made under paragraph (iv) of subsection (2) of this section, the payment shall be made to such person as the Minister may direct.

3. If, in connection with any enactment to which section one of this Act applies, any question arises as to whether any reduction in remuneration is such a reduction as is mentioned in subsection (2) of that section, or as to whether there was any such understanding as is mentioned in the proviso to that subsection, or as to whether any payment or adjustment ought to be made under section two of this Act, that question shall, if all persons and authorities concerned so agree, be determined by the Minister and, in default of such agreement, shall be referred for decision to an arbitrator to be appointed by the Minister on the application of any person or authority concerned.

Deter-
mination of
questions
arising
under Act.

Saving for
certain
Acts.

4. Nothing in this Act shall apply to, or affect any of the provisions of, the Police Pensions Acts, 1921 and 1926, or any Act amending those Acts or either of them.

Interpre-
tation.

5. In this Act, unless the context otherwise requires—

“enactment” includes an enactment in a local Act and a scheme or order made under any enactment;

“superannuation allowance” includes pension and any other similar allowance, gratuity, and grant by way of compassionate allowance, and “superannuation”, “superannuation fund”, and “superannuation scheme” shall be construed accordingly;

“reduction” in relation to remuneration includes a reduction by way of deduction or refund;

“local authority” does not include the London County Council or the council of a metropolitan borough, but, save as aforesaid, means the council of any county, county borough, or county district, and any other local authority within the meaning of the Local Loans Act, 1875, and includes any combination of local authorities;

“Minister” means Minister of Health.

38 & 39 Vict.
c. 83.

Application
to Scotland.

6. This Act in its application to Scotland shall have effect subject to the following modifications:—

- (i) the Secretary of State shall be substituted for the Minister of Health; and
- (ii) “local authority” means a county or a town council, and includes any combination of local authorities.

Short title
and extent.

7.—(1) This Act may be cited as the Local Government and other Officers Superannuation (Temporary Provisions) Act, 1933.

(2) This Act does not extend to Northern Ireland.